

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

Index No.:  
Date Filed:

-----X  
JOSE BENITEZ,

**SUMMONS**

Plaintiff,

Plaintiff designates  
**QUEENS COUNTY**  
as the place of trial

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, P.O. SGT. ARIAS (BADGE NO.: 1134),  
P.O. WARD (BADGE NO.: 22352), P.O. HOLUS (BADGE  
NO.: 3738), and P.O. ECHEVARIA (BADGE NO.: 26541),

The basis of venue is  
**Situs of Incident**

Situs of Incident:  
82-68 164<sup>th</sup> Street  
Jamaica, New York 11432

Defendants.

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**To the above-named Defendants:**

*You are hereby summoned* to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York  
July 8, 2024

*John J. Appell*  
JOHN J. APPELL, ESQ.  
APPELL & PARRINELLI  
*Attorneys for Plaintiff*  
3 West 35th Street, 6<sup>th</sup> Floor  
New York, New York 10001  
(212) 947-0101

**Defendants' Addresses:**

THE CITY OF NEW YORK  
100 Church Street, 4<sup>th</sup> Floor  
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT  
c/o CITY OF NEW YORK  
1 Police Plaza  
New York, New York 10038

P.O. SGT. ARIAS (BADGE NO.: 1134)  
c/o THE CITY OF NEW YORK  
100 Church Street, 4<sup>th</sup> Floor  
New York, New York 10007 and  
NEW YORK CITY POLICE DEPARTMENT  
1 Police Plaza  
New York, New York 10038

P.O. WARD (BADGE NO.: 22352)  
c/o THE CITY OF NEW YORK  
100 Church Street, 4<sup>th</sup> Floor  
New York, New York 10007 and  
NEW YORK CITY POLICE DEPARTMENT  
1 Police Plaza  
New York, New York 10038

P.O. HOLUS (BADGE NO.: 3738)  
c/o THE CITY OF NEW YORK  
100 Church Street, 4<sup>th</sup> Floor  
New York, New York 10007 and  
NEW YORK CITY POLICE DEPARTMENT  
1 Police Plaza  
New York, New York 10038

P.O. ECHEVARIA (BADGE NO.: 26541),  
c/o THE CITY OF NEW YORK  
100 Church Street, 4<sup>th</sup> Floor  
New York, New York 10007 and  
NEW YORK CITY POLICE DEPARTMENT  
1 Police Plaza  
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

-----X  
JOSE BENITEZ,

Plaintiff,

-against-

**VERIFIED COMPLAINT**

Index No.:

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, P.O. SGT. ARIAS (BADGE NO.: 1134),  
P.O. WARD (BADGE NO.: 22352), P.O. HOLUS (BADGE  
NO.: 3738), and P.O. ECHEVARIA (BADGE NO.: 26541),

Defendants.

-----X

Plaintiff, by and through his attorneys, Appell & Parrinelli, complaining of the  
defendants herein, upon information and belief, respectfully show to this Court, and allege as  
follows:

1. That at all times hereinafter mentioned the plaintiff was a resident of the County  
of Queens, State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW  
YORK was and still is a municipal corporation, duly organized and existing under and by virtue  
of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY  
POLICE DEPARTMENT was and still is a law enforcement entity, duly organized and existing  
under and by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned the defendant, P.O. SGT. ARIAS (BADGE  
NO.: 1134) was and still is employed with the NEW YORK CITY POLICE DEPARTMENT.
5. That at all times hereinafter mentioned the defendant, P.O. WARD (BADGE NO.:  
22352) was and still is employed with the NEW YORK CITY POLICE DEPARTMENT.

6. That at all times hereinafter mentioned the defendant, P.O. HOLUS (BADGE NO.: 3738) was and still is employed with the NEW YORK CITY POLICE DEPARTMENT.

7. That at all times hereinafter mentioned the defendant, P.O. ECHEVARIA (BADGE NO.: 26541) was and still is employed with the NEW YORK CITY POLICE DEPARTMENT.

8. That prior to the commencement of this action duplicate copies of the Notice of Claim and Amended Notice of Claim were timely served on the defendant THE CITY OF NEW YORK at their designated offices with respect to the facts of this action.

9. That prior to the commencement of this action duplicate copies of the Notice of Claim and Amended Notice of Claim were timely served on the defendant NEW YORK CITY POLICE DEPARTMENT at their designated offices with respect to the facts of this action.

10. That prior to the commencement of this action duplicate copies of the Notice of Claim and Amended Notice of Claim were timely served on the defendant P.O. SGT. ARIAS (BADGE NO.: 1134) at or through his designated offices with respect to the facts of this action.

11. That prior to the commencement of this action duplicate copies of the Notice of Claim and Amended Notice of Claim were timely served on the defendant P.O. WARD (BADGE NO.: 22352) at or through his designated offices with respect to the facts of this action.

12. That prior to the commencement of this action duplicate copies of the Notice of Claim and Amended Notice of Claim were timely served on the defendant P.O. HOLUS (BADGE NO.: 3738) at or through his designated offices with respect to the facts of this action.

13. That prior to the commencement of this action duplicate copies of the Notice of Claim and Amended Notice of Claim were timely served on the defendant P.O. ECHEVARIA (BADGE NO.: 26541) at or through his designated offices with respect to the facts of this action.

14. That the defendant THE CITY OF NEW YORK on or about March 15, 2024 held a statutory hearing of the plaintiff and 30 days has passed since the date of incident and the defendant THE CITY OF NEW YORK by their agents and/or employees has neglected and/or refused to settle this claim.

15. That the defendant NEW YORK CITY POLICE DEPARTMENT and the police officer defendants on or about March 15, 2024 held a statutory hearing of the plaintiff and 30 days has passed since the date of incident and the defendant NEW YORK CITY POLICE DEPARTMENT by their agents and/or employees has neglected and/or refused to settle this claim.

16. That the defendant THE CITY OF NEW YORK has waived its right to a physical examination of the plaintiff by not timely requesting and/or conducting said physical examination.

17. That the defendant NEW YORK CITY POLICE DEPARTMENT and the police officer defendants have waived its right to a physical examination of the plaintiff by not timely requesting and/or conducting said physical examination.

18. That this action was commenced within one year and ninety days of the incident herein, namely September 9, 2023.

19. That at all times herein mentioned, the defendant P.O. SGT. ARIAS (BADGE NO.: 1134) was acting within the scope and course of his employment with the NEW YORK CITY POLICE DEPARTMENT when the alleged incident occurred.

20. That at all times herein mentioned, the defendant P.O. WARD (BADGE NO.: 22352) was acting within the scope and course of their employment with the NEW YORK CITY POLICE DEPARTMENT when the alleged incident occurred.

21. That at all times herein mentioned, the defendant P.O. HOLUS (BADGE NO.: 3738) was acting within the scope and course of their employment with the NEW YORK CITY POLICE DEPARTMENT when the alleged incident occurred.

22. That at all times herein mentioned, the defendant P.O. ECHEVARIA (BADGE NO.: 26541) was acting within the scope and course of their employment with the NEW YORK CITY POLICE DEPARTMENT when the alleged incident occurred.

23. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules §1602 with respect to joint and several liability.

### **FIRST CAUSE OF ACTION**

24. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

25. That on or about September 9, 2023, at approximately 12:20 p.m., at the FDNY Queens Tactical Response Group located at 82-68 164<sup>th</sup> Street, Jamaica, in the County of Queens and the City and State of New York, the defendants P.O. SGT. ARIAS (BADGE NO.: 1134) participated in the arrest and detention of the plaintiff.

26. That on or about September 9, 2023, at approximately 12:20 p.m., at the FDNY Queens Tactical Response Group located at 82-68 164<sup>th</sup> Street, Jamaica, in the County of Queens and the City and State of New York, the defendants P.O. WARD (BADGE NO.: 22352) participated in the arrest and detention of the plaintiff.

27. That on or about September 9, 2023, at approximately 12:20 p.m., at the FDNY Queens Tactical Response Group located at 82-68 164<sup>th</sup> Street, Jamaica, in the County of Queens

and the City and State of New York, the defendants P.O. HOLUS (BADGE NO.: 3738) participated in the arrest and detention of the plaintiff.

28. That on or about September 9, 2023, at approximately 12:20 p.m., at the FDNY Queens Tactical Response Group located at 82-68 164<sup>th</sup> Street, Jamaica, in the County of Queens and the City and State of New York, the defendants P.O. ECHEVARIA (BADGE NO.: 26541) participated in the arrest and detention of the plaintiff.

29. That on or about September 9, 2023 at approximately 12:20 p.m. at the FDNY Queens Tactical Response Group located at 82-24 164th Street, Jamaica, New York 11432, the defendant P.O. SGT. ARIAS (BADGE NO.: 1134) attempted to and/or did handcuff the plaintiff with his arms behind his back.

30. That on or about September 9, 2023 at approximately 12:20 p.m. at the FDNY Queens Tactical Response Group located at 82-24 164th Street, Jamaica, New York 11432, the defendant P.O. WARD (BADGE NO.: 22352) attempted to and/or did handcuff the plaintiff with his arms behind his back.

31. That on or about September 9, 2023 at approximately 12:20 p.m. at the FDNY Queens Tactical Response Group located at 82-24 164th Street, Jamaica, New York 11432, the defendant P.O. HOLUS (BADGE NO.: 3738) attempted to and/or did handcuff the plaintiff with his arms behind his back.

32. That on or about September 9, 2023 at approximately 12:20 p.m. at the FDNY Queens Tactical Response Group located at 82-24 164th Street, Jamaica, New York 11432, the defendant P.O. ECHEVARIA (BADGE NO.: 26541) attempted to and/or did handcuff the plaintiff with his arms behind his back.

33. That on or about September 9, 2023 at approximately 12:20 p.m., the plaintiff respectfully urged the defendant P.O. SGT. ARIAS (BADGE NO.: 1134) of a prior medical condition which required care of the defendants in placing the handcuffs on him and the defendants ignored plaintiff and/or failed to abide by the plaintiff's request and/or information.

34. That on or about September 9, 2023 at approximately 12:20 p.m., the plaintiff respectfully urged the defendant P.O. WARD (BADGE NO.: 22352) of a prior medical condition which required care of the defendants in placing the handcuffs on him and the defendants ignored plaintiff and/or failed to abide by the plaintiff's request and/or information.

35. That on or about September 9, 2023 at approximately 12:20 p.m., the plaintiff respectfully urged the defendant P.O. HOLUS (BADGE NO.: 3738) of a prior medical condition which required care of the defendants in placing the handcuffs on him and the defendants ignored plaintiff and/or failed to abide by the plaintiff's request and/or information.

36. That on or about September 9, 2023 at approximately 12:20 p.m., the plaintiff respectfully urged the defendant P.O. ECHEVARIA (BADGE NO.: 26541) of a prior medical condition which required care of the defendants in placing the handcuffs on him and the defendants ignored plaintiff and/or failed to abide by the plaintiff's request and/or information.

37. That on or about September 9, 2023 at approximately 12:20 p.m., the defendant P.O. SGT. ARIAS (BADGE NO.: 1134) placed the plaintiff under arrest.

38. That on or about September 9, 2023 at approximately 12:20 p.m., the defendant P.O. WARD (BADGE NO.: 22352) placed the plaintiff under arrest.

39. That on or about September 9, 2023 at approximately 12:20 p.m., the defendant P.O. HOLUS (BADGE NO.: 3738) placed the plaintiff under arrest.



40. That on or about September 9, 2023 at approximately 12:20 p.m., the defendant P.O. ECHEVARIA (BADGE NO.: 26541) placed the plaintiff under arrest.

41. That at all times mentioned herein, the aforementioned arrest, detention and handcuffing complained of which occurred on September 9, 2023 at approximately 12:20 p.m. at the FDNY Queens Tactical Response Group located at 82-68 164<sup>th</sup> Street, Jamaica, New York 11354 and at the 107<sup>th</sup> Precinct of the New York City Police Department located at 71-01 Parsons Boulevard, Flushing, New York 11365 resulted in the plaintiff being negligently and/or unlawfully and unjustifiably approached and confronted by said officers including but not limited to P.O. SGT. ARIAS (BADGE NO.: 1134) of the 107<sup>th</sup> Precinct, P.O. WARD (BADGE NO.: 22352) of the 107<sup>th</sup> Precinct, P.O. HOLUS (BADGE NO.: 3738) of the 107<sup>th</sup> Precinct and P.O. ECHEVARIA (BADGE NO.: 26541) of the 107<sup>th</sup> Precinct which resulted in plaintiff being falsely and unnecessarily assaulted, battered, handcuffed, falsely arrested and falsely imprisoned, all as he was in the course of his employment as a Lieutenant for the FDNY acting in the course of his employment at the aforementioned address. Plaintiff was negligently and carelessly falsely arrested for an unknown reason; transferred to the 107<sup>th</sup> Precinct located at the aforementioned address and falsely imprisoned without plaintiff having committed any crime; in negligently failing to inform plaintiff for the reason(s) for being arrested; in falsely and/or negligently holding and imprisoning the plaintiff without having ever read his Miranda rights; for keeping the plaintiff locked up and imprisoned without notifying him of the reasons for doing so; in failing to fully investigate and/or negligently investigating the said matter and/or failing to speak with any and all of the appropriate witnesses; in negligently failing to speak with and interview witnesses who knew the truth(s) of the events.

42. The defendants were also further negligent and grossly negligent in the assault, battery, false arrest and false imprisonment of the plaintiff in that the said officers used excessive force upon the plaintiff causing serious personal injuries; in detaining the plaintiff for an extended and unnecessary time period and not providing plaintiff with proper and necessary medical care.

43. That by reason of the arrest, detention, assault and imprisonment of plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, sustained severe and permanent personal injuries and circumstances and was prevented and hindered from performing and transacting his necessary affairs and his business and employment and was caused to suffer much pain in mind and body, and to sustain economic loss, personal and permanent injury, past and future pain and suffering, pecuniary loss, loss of earnings and benefits, medical bills, mental anguish, emotional harm, stress, anxiety, embarrassment and permanency as a result of this incident, grave fear and intimidation for his safety and well being, fearful and anxious as a result of the arrest, emotional harm and all other damages hospital, physician and other medical expenses, pain and suffering, loss of quality and/or enjoyment of life, and all other damages to which claimant is entitled to by case law and statute and was otherwise damaged. The defendants further aggravated an underlying asymptomatic and/or improving medical condition.

### **SECOND CAUSE OF ACTION**

44. Plaintiff repeats and realleges each and every allegation contained in the First, Cause of Action as if fully set forth at length herein.

45. That the aforesaid actions, and resulting damages to plaintiff, were due to the negligence of all of the defendants in the hiring, retention, and training of its employees,

including Defendant P.O. SGT. ARIAS (BADGE NO.: 1134), defendant P.O. WARD (BADGE NO.: 22352), defendant P.O. HOLUS (BADGE NO.: 3738) and the defendant P.O. ECHEVARIA (BADGE NO.: 26541) and any other police officers involved in the arrest, malicious prosecution and false imprisonment of the plaintiff and all of the injuries which resulted as described above.

46. The defendants CITY OF NEW YORK and defendant NEW YORK CITY POLICE DEPARTMENT were further negligent in failing to properly supervise, screen and hire its officers including the named defendants; in failing to train and/or properly train its officers in how to effectuate an arrest; in failing to train and/or properly train their officers in the use of force and excessive force; in failing to train their officers to prevent the injuries to arrested persons; and in failing to provide medical treatment and denying the plaintiff who was taken into custody with proper and necessary medical attention.

### **THIRD CAUSE OF ACTION**

47. Plaintiff repeats and realleges each and every allegation contained in the First and Second Causes of Action as if fully set forth at length herein.

48. The plaintiff alleges that he was deprived by all of the defendants of his rights, privileges and immunities secured by the Constitution of The United States of America and of the State of New York, and his rights pursuant to 42 USC §1983 by those who, under color of a statute or regulation of this state or federal jurisdiction caused plaintiff to be so deprived of all of his due process rights and rights of equal and fair treatment.

49. That as a result of all of the above the plaintiff has sustained all of the aforementioned injuries as described above.

**WHEREFORE**, plaintiff demands judgment against each of the defendants, on all of the foregoing causes of action, for both negligence and gross negligence in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York  
July 8, 2024

Yours, etc.

*John J. Appell*

JOHN J. APPELL, ESQ.

APPELL & PARRINELLI

*Attorneys for Plaintiff*

3 West 35th Street, 6<sup>th</sup> Floor

New York, New York 10001

(212) 947-0101

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John J. Appell  
JOHN J. APPELL, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

-----X

JOSE BENITEZ,

Plaintiff,

Index No.:

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-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE  
DEPARTMENT, P.O. SGT. ARIAS (BADGE NO.: 1134),  
P.O. WARD (BADGE NO.: 22352), P.O. HOLUS (BADGE  
NO.: 3738), and P.O. ECHEVARIA (BADGE NO.: 26541),

Defendants,

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**SUMMONS AND VERIFIED COMPLAINT**

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**APPELL & PARRINELLI**

*Attorneys for Plaintiff*

3 West 35<sup>th</sup> Street, 6<sup>th</sup> Floor  
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